

25STCV32894 25STCV32894

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: MOTION TO SET ASIDE DEFAULT AND QUASH SERVICE OF SUMMONS

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Case Number: 25STCV32894 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

RUBEN FUENTES,

Plaintiff,

vs.

JOSE G. SANDOVAL, an
individual; TERESA A. SANDOVAL, an individual and Does 1 to 20,

Defendants.

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CASE NO: 25STCV32894

[TENTATIVE] ORDER RE: MOTION
TO SET ASIDE DEFAULT AND QUASH SERVICE OF SUMMONS

Dept. 731

August 4, 2026

8:30 a.m.

Moving Party: Defendant, Teresa A. Sandoval

Opposing Party: None

Notice: OK

Background Facts

Plaintiff Ruben Fuentes sues

Defendants Jose G. Sandoval, Teresa A. Sandoval, and Does 1 to 20 pursuant to a
November 12, 2025, Verified Complaint alleging claims of (1) Declaratory
Relief, (2) Business Interference, (3) Unjust Enrichment, and (4) Fraudulent
Transfer.

On December 29, 2025, Plaintiff
filed proofs of service showing service of summons of the Complaint, Summons,
and other documents initiating this action by personal service on both
Defendants at 12854 Morning Avenue, Downey, California 90242.

On February 4, 2026, Plaintiff
filed for and the Clerk entered an entry of default against Teresa Sandoval.

Now before the Court is Defendant
Teresa Sandoval's unopposed (1) motion to set aside entry of default and (2)
motion to quash service of summons, both based on the argument that service of
summons was effected at an address bearing no relation to Teresa Sandoval at
the time of service, for which reason she had no notice of this action and an
entry of default was secured against her.

Motion to Set Aside
Default

a.
Legal Standard

California courts are empowered
pursuant to Code of Civil Procedure section 473 to relieve a party "upon any
terms as may be just ... from a judgment, dismissal, order, or other proceeding
taken against him or her through his or her mistake, inadvertence, surprise, or
excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

Section 473 consists of two
distinct parts: "a discretionary provision, which applies permissively, and a
mandatory provision, which applies as of right." (Minick v. City of Petaluma
(2016) 3 Cal.App.5th 15, 25-26.) Relief is discretionary unless the application
is accompanied by an "attorney affidavit of fault" supporting mandatory relief,
and such discretionary relief must be based on a showing of "mistake,
inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b);
see Lorenz v. Commercial Acceptance Ins. Co. (1995) 40 Cal.App.4th 981,
989.)

A party moving for relief on the
basis of "mistake, inadvertence, surprise, or excusable neglect" must show
specific facts demonstrating that one of these conditions was met. (Hopkins
& Carley v. Gens (2011) 200 Cal.App.4th 1401, 1410 [defendant's burden is
to demonstrate "that due to some mistake, either of fact or of law, of himself
or of his counsel, or through some inadvertence, surprise or neglect which may
properly be considered excusable, the judgment or order from which he seeks

relief should be reversed” (emphasis in original; internal quotes omitted)].)

Discretionary relief must be sought within a reasonable time and in no case exceeding six months after entry of the default, judgment, dismissal, order, or other proceeding. (Code Civ. Proc., § 473, subd. (b).)

b. Discussion

After review, the Court finds sufficient grounds to grant relief.

Defendant Teresa Sandoval has filed a motion for relief from the February 4, 2026, entry of default against her. (See Motion, ¶¶ 2-3 at pp. 2-3.)

Service of the motion was properly effected on counsel via email. (Compare Motion, Proof of Service [service on counsel at ], with Complaint, 1:1-4 [counsel information, with email address].)

Relief is properly sought within six months of entry of default, Defendant having filed her motion for relief on May 15, 2026, within six months of February 4, 2026.

And Defendant Teresa Sandoval provides a sworn declaration to show entry of default was entered against her by mistake, inadvertence, or excusable neglect: Service of summons was effected at 12854 Morning Avenue, Downey, California 90242, on November 14, 2025, on which date Plaintiff resided at 6042 Orange Avenue, Cypress, California 90630, for which reason Defendant Teresa Sandoval received no notice of this action, and her failure to respond is excusable. (Motion, Sandoval Decl., ¶¶ 1-6.)

The record fails to reflect any opposition to this motion by Plaintiff to contest Defendant Teresa Sandoval's position regarding service at the correct address.

c. Conclusion

Defendant Teresa A. Sandoval's

motion to set aside entry of default is accordingly GRANTED.

The Court VACATES the February 4,
2026, entry of default against Defendant Teresa A. Sandoval.

Motion to Quash
Service of Summons

a.

Legal Standard

A motion to quash can be brought on
the ground that the court lacks personal jurisdiction over the defendant, e.g.,
because service was improper. (See Code Civ. Proc., § 418.10, subd. (a)(1);
see, e.g., *Tresway Aero, Inc. v. Superior Court* (1971) 5 Cal.3d 431, 433
[defendant filed motion to quash on ground that service on corporation was
defective because it did not comply with Code Civ. Proc., § 410, now § 412.30];
County of Riverside v. Superior Court (1997) 54 Cal.App.4th 443, 446
[defendant filed motion to quash on ground that service was defective because
summons did not specify date for answering and appearing].)

The defendant should attach
evidence to support its motion. (*School Dist. of Okaloosa Cty. v. Superior
Court* (1997) 58 Cal.App.4th 1126, 1131 [defendant must present some
admissible evidence in form of affidavits or declarations to place issue of
lack of jurisdiction before court]; see, e.g., *Aquila, Inc. v. Superior
Court* (2007) 148 Cal.App.4th 556, 563 [defendant supported motion to quash
with declarations].) The defendant does not have to provide supporting
evidence, however, until the plaintiff shows that the court has personal
jurisdiction over the defendant. (See *Floveyor Int'l v. Superior Court*
(1997) 59 Cal.App.4th 789, 793-794.) Stated otherwise, the defendant can file a
motion to quash without supporting evidence and then do nothing until the
plaintiff has provided evidence that the court has personal jurisdiction. (See *ibid.*
[“A defendant who takes the position that the service of summons as made upon
him did not bring him within the jurisdiction of the court”] may serve and
file a notice of motion to quash the service,” where “the effect of such a
notice is to place upon the plaintiff the burden of proving the facts that did
give the court jurisdiction ... [or] the facts requisite to a [showing of]
effective service,” citations omitted].)

b. Discussion

Defendant Teresa Sandoval brings a motion to quash service of summons for failure to comply with the Code of Civil Procedure insofar as Defendant was served at a residential address where she did not live on the date of service. (See Motion, ¶ 1 at p. 2.)

Defendant supports this position with a declaration from Defendant Teresa Sandoval herself, discussed above, indicating that service of summons was effected at 12854 Morning Avenue, Downey, California 90242, on November 14, 2025, on which date Plaintiff resided at 6042 Orange Avenue, Cypress, California 90630, for which reason service does not conform with the Code of Civil Procedure's requirements for service of summons. (See, e.g., *Ibid.*)

The record fails to reflect any opposition to this motion by Plaintiff to contest Defendant Teresa Sandoval's position regarding service at the correct address, where, as stated ante, after a defendant makes a motion to quash, the burden is on the plaintiff to prove by a preponderance of the evidence facts justifying the exercise of jurisdiction over the defendant. (*Ziller Elecs. Lab. GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-1233.)

c. Conclusion

Defendant Teresa A. Sandoval's motion to quash service of summons is accordingly GRANTED.

Defendant Teresa A. Sandoval is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court